

Annamalai University Act, 2013

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State of Tamilnadu- Act

Annamalai University Act, 2013

TAMILNADU

India

Annamalai University Act, 2013

Act 20 of 2013

Published on 24 September 2013

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Annamalai University Act, 2013

Act

No. 20 of 2013

Statement of Objects and Reasons. - Raja Sir Annamalai Chettiar was maintaining colleges near Chidambaram in which higher instruction was imparted in English, Tamil and Sanskrit studies. In the year 1928 he agreed with then Local Government to hand over those institutions with all the properties attached thereto and further to give a sum of RS. 20 lakhs for the purposes of establishing and maintaining at Annamalai Nagar a teaching and residential University wherein he and his heirs shall be entitled to certain powers and privileges.

2. Accordingly, the Annamalai University was established under the Annamalai University Act, 1928 (Tamil Nadu Act I of 1929) as unitary type for encouragement of higher education and research in Tamil Nadu in which Raja Sir Annamalai Chettiar was recognized as its Founder. Since then Raja Sir Annamalai Chettiar and his heirs, as Founder of the

University, were exercising the powers and privileges conferred under the Act. Under the said Act, the Founder besides being the Pro-Chancellor of the University, is also an officer of the University. Though the position of the Founder appears to be a honorary one, the past experience indicates that the powers and privileges conferred on the Founder has been grossly abused.

3. Under the said Act, the Founder shall recommend a panel of three names to the Chancellor for him to choose one among them as Vice-Chancellor. The Vice-Chancellor so appointed being the Principal Executive Officer have power to appoint clerical and other servants and also being a Board Member along with the Founder for the selection of Teachers and Registrar of the University is always under an obligation to execute the desires of the Founder.

4. The post of the Founder being a hereditary one and for life, the University established by law is being administered by a Vice-Chancellor recommended by the Founder, a private individual, who derives right: through inheritance. Such privilege is incompatible with an egalitarian social order and also work against the spirit of good governance.

5. During the month of November 2012 fearing retrenchment and reduction in emoluments, the Joint Action Council of Annamalai University teaching and non-teaching staff association engaged in hunger strikes, abstaining from work, gate meetings and protest which resulted in campus unrest and postponement of examinations. In spite of releasing Block Grant by the Government every year running to several crores, the University has landed in unprecedented financial crisis primarily due to appointment of excess staff, transfer of University funds, investments of funds for other purposes and non-adherence of statutory obligations.

6. To safeguard the welfare of the students and to allay the apprehensions of the staff, the Government constituted a Special Local Fund Auditing Team to assess the financial and other irregularities in the Annamalai University and to submit a detailed report to the Government. The Government also constituted a High Level Committee to analyze the audit report of the Special Local Fund Auditing Team and to suggest suitable recommendations on the affairs of the University.

7. The provisions of the Annamalai University Act, 1928 are not similar to the provisions of other University Acts in the State. The peculiar feature of the University Act which vest vast powers and privileges on the Founder, had led to maladministration of the University. The composition of authorities of the University also requires changes in order to provide adequate representation for the present day stake holders. As it is the social obligation of the Government to protect the livelihood of the teaching and non-teaching staff of the University and to ensure the imparting of higher education to the rural students in and around Annamalai Nagar, the Government have decided to bring the existing Annamalai University Act on par with other enactments governing the Universities in the State and to repeal the said Tamil Nadu Act I of 1929.

8. The Bill seeks to give effect to the above decision.

[Dated 24.9.2013]

An Act to repeal and re-enact the law relating to Annamalai University.

Be it enacted by the Legislative Assembly of the State of Tamil Nadu in the Sixty-fourth Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Annamalai University Act, 2013.

(2)

It extends to the territorial jurisdiction of the University which shall not extend beyond a radius of sixteen kilometres from its convocation hall situated at Annamalai Nagar in Cuddalore District.

(3)

It shall come into force on such date as the Government may, by notification, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(a)

"Dean" means the Dean of each Faculty;

(b)

"Faculty" means the Faculty of the University;

(c)

"Government" means the State Government;

(d)

"law in force" includes any enactment, regulation, order, rule, direction or notification in force in the State of Tamil Nadu;

(e)

"hostel" means a unit of residence for students of the University maintained or recognized by the University;

(f)

"prescribed" means prescribed by the statutes, ordinances or regulations made under this Act;

(g)

"statutes", "ordinances" and "regulations" mean respectively the statutes, ordinances and regulations of the University made or continued in force under this Act;

(h)

"teachers" mean such Assistant Professors, Associate Professors, Professors, Deans, Directors and other like persons as may be declared by the statutes to be teachers;

(i)

"University" means the Annamalai University deemed to have been established under section 3;

(j)

"University Grants Commission" means the commission established under section 4 of the University Grants Commission Act, 1956;

(k)

"University laboratory" means a laboratory maintained by the University, whether instituted by it or not, and intended for the carrying on, and advancement of, research work;

(l)

"University library" means a library maintained by the University, whether instituted by it or not.

Chapter II

The University

3.

Establishment of University.

(1)

On and from the date of commencement of this Act, the Annamalai University established under the Annamalai University Act, 1928 shall be deemed to have been established and incorporated under this Act and is hereby declared to be the University by the aforesaid name.

(2)

The University shall be a body corporate, shall have perpetual succession and a common seal and shall sue and be sued by the said name.

(3)

The headquarters of the University shall be located within the limits of the Annamalai Nagar or in any place within a radius of sixteen kilometres around those limits.

4.

Objects and powers of University.

- The University shall have the following objects and powers, namely:-

(1)

to provide for instruction and training in such branches of learning as it may determine including professional studies and technology;

(2)

to provide for research and for the advancement and dissemination of knowledge;

(3)

to institute degrees, titles, diplomas and other academic distinctions;

(4)

to hold examinations and to confer degrees, titles, diplomas and other academic distinctions on persons who-

(a)

have pursued an approved course of study in a University college or laboratory unless exempted therefrom in the manner prescribed by the statutes and have passed the prescribed examinations of the University; or

(b)

have carried on research under conditions prescribed;

(5)

to confer honorary degrees or other academic distinctions under conditions prescribed;

(6)

to institute, maintain and manage institutes of research, colleges and laboratories, libraries, museums and other institutions necessary to carry out the objects of the University;

(7)

to institute Assistant Professorships, Associate Professorships, Professorships and any other teaching or research posts required by the University and to appoint persons to such Assistant Professorships, Associate Professorships, Professorships and other teaching or research posts;

(8)

to institute and award fellowships, travelling fellowships, scholarships, studentships, exhibitions, medals and prizes in accordance with the statutes;

(9)

to establish, maintain and manage hostels, to recognize hostels not maintained by the University and to withdraw recognition therefrom;

(10)

to supervise and control hostels and to regulate and enforce discipline among the students of the University and to make arrangements for promoting their health and general welfare;

(11)

to hold and manage endowments and other properties and funds of the University;

(12)

to borrow money with the approval of the Government on the security of the property of the University for the purposes of the University;

(13)

to fix fees and to demand and receive such fees as may be prescribed;

(14)

to make grants from the funds of the University for the maintenance of a National Cadet Corps;

(15)

to institute and provide funds for the maintenance of-

(a)

publication bureau;

(b)

an employment bureau;

(c)

students' unions;

(d)

University athletic clubs; and

(e)

other similar associations;

(16)

to co-operate with any other University, authority or association or any other public or private body having in view the promotion of purposes and objects similar to those of the University for such purposes as may be agreed upon, on such terms and conditions, as may, from time to time, be prescribed;

(17)

generally to do all such other acts and things as may be necessary or desirable to further the objects of the University;

- (18)
to offer courses of study through distance education system in accordance with the law in force; and
- (19)
to establish and maintain study centre in any part of India or outside India in accordance with the law in force.
- 5.

Visitation.

- (1)
The Government shall have the right to cause an inquiry to be made by such person or persons as they may direct in respect of any matter connected with the University.
- (2)
The Government shall, in every case, give notice to the University of their intention to cause an inquiry to be made and the University shall be entitled to be represented at such inquiry.
- (3)
The Government shall communicate to the University their views with reference to the result of such inquiry and may, after ascertaining the opinion of the University thereon, advise the University upon the action to be taken and fix a time limit for taking such action.
- (4)
The University shall, within the time limit so fixed, report to the Government the action taken or proposed to be taken on the advise tendered by the Government.
- (5)
If the University does not take action within the time fixed or if the action taken by the University is in the opinion of the Government not satisfactory, the Government may, after considering any explanation offered or representation made by the University, issue such directions as they may deem fit and the University shall comply with such directions.
- (6)
In the event of the Academic Council or the Syndicate not complying with those directions within such time as may be fixed in that behalf by the Government, the Government shall have power to appoint some person or body to carry them out.

Chapter III

Officers of the University

- 6.
- Officers of the University.
- The University shall consist of the following officers, namely:-
- (1)
The Chancellor;
- (2)
The Pro-Chancellor;
- (3)
The Vice-Chancellor;
- (4)
The Registrar;
- (5)
The Deans;
- (6)
The Finance Officer;
- (7)
The Controller of Examination; and
- (8)
Such other persons as may be declared by the statutes to be officers of the University.

7.
Chancellor.

- (1)

The Governor of the State of Tamil Nadu shall be the Chancellor of the University.

(2)

The Chancellor shall be the head of the University and shall, when present, preside at any convocation of the University and confer degrees, titles, diplomas or other academic distinctions upon persons entitled to receive them.

(3)

No honorary degree or other distinction shall be conferred by the University upon any person without the approval of the Chancellor.

(4)

The Chancellor shall exercise such other powers and perform such other duties as may be conferred or imposed on him by or under this Act.

8.

Pro-Chancellor.

(1)

The Minister in-charge of Higher Education in the State of Tamil Nadu shall be the Pro-Chancellor of the University.

(2)

In the absence of the Chancellor, or during the Chancellor's inability to act, the Pro-Chancellor shall exercise the powers and perform the duties of the Chancellor.

(3)

The Pro-Chancellor shall exercise such powers and perform such duties as may be conferred on him by or under this Act.

9.

Vice-Chancellor.

(1)

Every appointment of the Vice-Chancellor shall be made by the Chancellor from out of a panel of three names recommended by the Committee referred to in sub-section (2) and such panel shall not contain the name of any member of the said Committee:

Provided that if the Chancellor does not approve any of the persons in the panel so recommended by the Committee, he may take steps to constitute another Committee, in accordance with sub-section (2) to give a fresh panel of three different names and shall appoint one of the persons named in the fresh panel as Vice-Chancellor.

(2)

For the purpose of sub-section (1), the Committee shall consist of three persons of whom one shall be nominated by the Chancellor, one shall be nominated by the Government and one shall be nominated by the Syndicate:

Provided that the person so nominated shall not be a member of any of the authorities of the University.

(3)

The Vice-Chancellor shall hold office for a period of three years and shall be eligible for reappointment for a further period of three years: Provided that the Vice-Chancellor may, by writing under his hand addressed to the Chancellor and after giving two months notice, resign his office: Provided further that a person appointed as Vice-Chancellor shall retire from office if, during the term of his office or any extension thereof, he completes the age of seventy years.

(4)

When any temporary vacancy occurs in the office of the Vice-Chancellor, or when the Vice-Chancellor is, by reason of illness, absence or for any other reason, unable to exercise the powers and perform the duties of his office, the senior-most Professor of the University shall exercise the powers and perform the duties of the Vice-Chancellor till the Syndicate makes the requisite arrangements for exercising the powers and performing the duties of the Vice-Chancellor.

(5)

The Vice-Chancellor shall be a whole-time officer of the University and his emoluments and other terms and conditions of service shall be as follows:-

(a)

There shall be paid to the Vice-Chancellor a fixed salary of seventy-five thousand rupees along with special allowances of five thousand rupees per mensem or such higher salary as may be fixed by the Government from time to time and he shall be entitled without payment of rent to the use of a furnished residence throughout his term of office and no charge shall fall on the Vice-Chancellor personally in respect of the maintenance of such residence. He may be entitled to such

other perquisites as may be provided in the statutes.

(b)

The Vice-Chancellor shall be entitled to such terminal benefits and allowances as may be fixed by the Syndicate with the approval of the Chancellor from time to time:

Provided that, where as employee of,-

(i)

the University; or

(ii)

any other University or college or institution, is appointed as Vice-Chancellor, he shall be allowed to continue to contribute to the Provident Fund to which he is a subscriber, and the contribution of the University shall be limited to what he had been contributing immediately before his appointment as Vice-Chancellor.

(c)

The Vice-Chancellor shall be entitled to travelling allowances at such rates as may be fixed by the Syndicate.

(d)

The Vice-Chancellor shall be entitled to earned leave on full pay at one- eleventh of the periods spent by him on active service: Provided that when the earned leave applied for by the Vice-chancellor, in sufficient time before that date of expiry of the term of his office, is refused by the Chancellor in the interest of the University and if he does not avail of the leave before the date of expiry of the term of his office, he shall be entitled to draw cash equivalent to leave salary after relinquishment of his office in respect of earned leave at his credit subject to a maximum of two hundred and forty days.

(e)

The Vice-Chancellor shall be entitled, on medical grounds or otherwise, to leave without pay for a period of not exceeding three months during the term of his office:

Provided that such leave may be converted into leave on full pay to the extent to which he is entitled to earned leave under clause(d).

(6)

The Vice-Chancellor shall not be removed from his office except by an order of the Chancellor passed on the ground of willful omission or refusal to carry out the provisions of this Act or for abuse of the powers vested in him and on the advice tendered by the Government on consideration of the report of an inquiry ordered by them under sub-section(7).

(7)

For the purposes of holding an inquiry under sub-section (6), the Government shall appoint a person who is or has been a judge of the High Court or who is or has been an officer of the Government not below the rank of Chief Secretary to Government. The inquiry authority shall hold the inquiry after giving an opportunity to make representation by the Vice-Chancellor and shall submit a report to the Government on the action to be taken including penalty, if any, to be imposed, and the Government shall on consideration of the report advise the Chancellor. The Chancellor shall act in accordance with such advice, as far as may be, in any case within three months.

10.

Power and duties of Vice-Chancellor.

(1)

The Vice-Chancellor shall be the principal executive and academic head of the University.

(2)

The Vice-Chancellor shall, in the absence of the Chancellor and Pro-Chancellor, preside at the convocation of the University and confer degrees, titles, diplomas or other academic distinctions upon persons entitled to receive them.

(3)

The Vice-Chancellor shall exercise control over the affairs of the University and shall be responsible for the due maintenance of discipline in the University.

(4)

The Vice-Chancellor shall ensure the faithful observance of the provisions of this Act and the statutes, ordinances and regulations made thereunder.

(5)

In any emergency, which in the opinion of the Vice-Chancellor requires immediate action to be taken, he shall, by order, take such action as he deems necessary and shall, at the earliest opportunity, report the action taken to such officer or

authority or body as would have in the ordinary course dealt with the matter:

Provided that no such order shall be passed unless the person likely to be affected, has been given a reasonable opportunity of being heard.

(6)

Any person, aggrieved by any order of the Vice-Chancellor under sub-section (5), may prefer an appeal to the Syndicate within thirty days from the date on which such order is communicated to him and the Vice-Chancellor shall give effect to the order passed by the Syndicate on such appeal.

(7)

The Vice-Chancellor shall give effect to the decision of the Syndicate regarding the appointment, suspension and dismissal of the teachers and other persons employed in the University.

(8)

The Vice-Chancellor shall be the ex-officio Chairman of the Syndicate, Academic Council and the Finance Committee. The Vice-Chancellor shall be entitled to be present at, and to address, any meeting of any authority or other body of the University, but shall not be entitled to vote thereat, unless he is a member of the authority or body.

(9)

The Vice-Chancellor shall convene meetings of the Syndicate, the Academic Council and the Finance Committee.

(10)

The Vice-Chancellor shall be responsible for the co-ordination and integration of teaching and research extension education and curriculum development.

(11)

The Vice-Chancellor shall exercise such other powers and perform such duties as may be prescribed by statutes.

11.

Registrar.

(1)

The Registrar shall be a whole-time salaried officer of the University appointed by the Syndicate. The qualifications and the method of recruitment shall be such as may be prescribed. The terms and conditions of service of the Registrar shall be as follows:-

(a)

The holder of the post of Registrar shall be an academician not below the rank of a Professor in the University;

(b)

The Registrar shall hold office for a period of three years: Provided that the Registrar shall retire on attaining the age of sixty years or on the expiry of period specified in this clause, whichever is earlier.

(c)

The emoluments and other terms and conditions of service of the Registrar shall be such as may be prescribed.

(d)

When the office of the Registrar is vacant or when the Registrar is, by reason of illness, absence or for any other cause, unable to perform the duties of his office, the duties of the office of the Registrar shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(2)

(a)

The Registrar shall have power to take disciplinary action against such of the employees, excluding teachers of the University and academic staff, as may be specified in the orders of the Syndicate and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or withholding of increments:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(b)

An appeal shall lie to the Vice-Chancellor against any order of the Registrar imposing any of the penalties specified in clause (a).

(c)

In any case where the inquiry discloses that penalty beyond the powers of the Registrar is called for, the Registrar shall, upon conclusion of the inquiry, make a report to the Vice-Chancellor along with his recommendations and the

Vice-Chancellor shall pass an order imposing any penalty:

Provided that an appeal shall lie to the Syndicate against an order of the Vice-Chancellor imposing any penalty.

(d)

No appeal under clause (b) or clause (c) shall be preferred after the expiry of sixty days from the date on which the order appealed against was received by the appellant.

(3)

Save as otherwise provided in this Act, the Registrar shall be the ex-officio Secretary to the Syndicate, the Academic Council, the Faculties and the Board of Studies, but shall not be deemed to be a member of any of these authorities:

(4)

It shall be the duty of the Registrar, -

(a)

to be the custodian of the records, the common seal and such other property of the University as the Syndicate shall commit to his charge;

(b)

to issue all notice convening meetings of the Syndicate, the Academic Council, the Faculties, the Boards of Studies, the Boards of Examiners and of any Committee appointed by the authorities of the University;

(c)

to keep the minutes of all the proceedings of the meetings of the Syndicate, the Academic Council, the Faculties, the Boards of Studies, the Boards of Examiners and of any Committee appointed by the authorities of the University;

(d)

to conduct the official correspondence of the Syndicate;

(e)

to supply to the Chancellor copies of the agenda of the meetings of the authorities of the University as soon as they are issued and the minutes of the proceedings of such meetings; and

(f)

to exercise such other powers and perform such other duties as may be specified in the statutes, the ordinances or the regulations or as may be required, from time to time, by the Syndicate or the Vice-Chancellor.

(5)

In all suits and other legal proceedings by or against the University, the pleadings shall be signed and verified by the Registrar and all process in such suits and proceedings, shall be issued to, and served on, the Registrar.

12.

Dean.

(1)

The Dean shall be appointed by the Vice- Chancellor from among the professors in the Faculty for a period of three years and he shall be eligible for reappointment:

Provided that a Dean on attaining the age of sixty years shall cease to hold office as such:

Provided further that if at anytime there is no Professor in a Faculty, the Vice-Chancellor shall exercise the powers of the Dean of the Faculty.

(2)

When the office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause, unable to perform his duties of his office, the duties of his office shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(3)

The Dean shall be the Head of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty. The Dean shall have such other functions as may be prescribed by the ordinance.

(4)

The Dean shall have the right to be present and to speak at any meeting of the Board of Studies or Committees or the Faculty, as the case may be, but shall not have the right to vote thereat unless he is a member thereof.

13.

Finance Officer.

(1)

The Finance Officer shall be the whole-time salaried officer of the University appointed by the Syndicate for such period as may be specified by the Syndicate in this behalf.

(2)

Every appointment of the Finance Officer shall be made by the Syndicate on the recommendations of the Vice-Chancellor from a panel of three names of officers forwarded by the Government.

(3)

The emoluments and other terms and conditions of service of the Finance Officer shall be such as may be prescribed.

(4)

The Finance Officer shall retire on attaining the age of fifty-eight years or on the expiry of the period specified by the Syndicate under sub-section (1), whichever is earlier.

(5)

When the office of the Finance Officer is vacant or when the Finance Officer, is by reason of illness, absence or for any other cause unable to perform the duties of his office, the duties of the Finance Officer shall be performed by such person as the Vice-Chancellor may appoint for the purpose.

(6)

The Finance Officer shall be the ex-officio Secretary to the Finance Committee, but shall not be deemed to be a member of such Committee.

(7)

The Finance Officer shall,-

(a)

exercise general supervision over the funds of the University and shall advise the University as regards its financial policy; and

(b)

exercise such other powers and perform such other financial functions as may be assigned to him by the Syndicate or as may be prescribed:

Provided that the Finance Officer shall not incur any expenditure or make any investment exceeding such amount as may be prescribed without the previous approval of the Syndicate.

(8)

Subject to the control of the Syndicate, the Finance Officer shall,-

(a)

ensure that the limit fixed by the Syndicate for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purposes for which they are granted or allotted;

(b)

be responsible for the preparation of annual accounts, financial estimates and the budget of the University and for their presentation to the Syndicate;

(c)

keep a constant watch on the cash and bank balance and of investments;

(d)

watch the progress of the collection of revenue and advise on the methods of collection employed;

(e)

ensure that the registers of buildings, lands, furniture and equipments are maintained upto date and that stock checking is conducted, of equipments and other consumable materials in all offices, special centres, specialized laboratories;

(f)

bring to the notice of the Vice-Chancellor any unauthorised expenditure or other financial irregularity and suggest appropriate action to be taken against person at fault; and

(g)

call from any office, department, centre, laboratory and college maintained by the University, any information or returns that he may consider necessary for the performance of his duties.

(9)

The receipt of the Finance Officer or of the person or persons duly, authorised in this behalf by the Syndicate for any money payable to the University shall be a sufficient discharge for payment of such money.

14.

Controller of Examinations.

(1)

The Controller of Examinations shall be an academician and a whole-time officer of the University appointed by the Syndicate on the recommendation of the Vice-Chancellor for such period and on such terms and conditions as may be prescribed.

(2)

The Controller of Examinations shall exercise such powers and perform such duties as may be prescribed.

15.

Vice-Chancellor and other Officers, etc, to be public servants.

- The Vice-Chancellor, the Registrar, the Finance Officer, the Controller of Examinations and other employees of the University shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servants within the meaning of section 21 of the Indian Penal Code.

Chapter IV

Authorities of the University

16.

Authorities of University.

- The authorities of the University shall be the Syndicate, the Academic Council, the Finance Committee, Faculties and Board of Studies and such other bodies of the University as may, from time to time, be declared by the statutes to be authorities of the University.

17.

Disqualification for membership.

(1)

No person shall be qualified for election or nomination as a member of any of the authorities of the University, if on the date of such election or nomination, he is-

(a)

of unsound mind; or

(b)

an applicant to be adjudicated as an insolvent or an undischarged insolvent; or

(c)

sentenced by a Criminal Court to imprisonment for any offence involving moral turpitude.

(2)

In case of dispute or doubt as to whether a person is disqualified under sub-section (1), the Syndicate shall determine and its decision shall be final.

18.

Disqualification for election or nomination to Syndicate and Academic Council in certain cases.

(1)

Notwithstanding anything contained in clause (a) of sub-section (5) of section 19 and sub-section (3) of section 22 no person who has held office as a member for a total period of six years in the Syndicate or the Academic Council or in both, of the University shall be eligible for election or nomination to either of the said two authorities:

Provided that for the purpose of computing the total period of six years referred to in this sub-section, the period of three years during which a person held office in one authority either by election or by nomination and the period of three years during which he held office in another authority either by election or by nomination shall be taken into account and accordingly such person shall not be eligible for election or nomination to either Syndicate or the Academic Council:

Provided further that for the purpose of this sub-section, if a person who has held office for a period not less than one year in anyone of the authorities referred to in this sub-section in a casual vacancy shall be deemed to have held office for a period of three years in that authority:

Provided also that for the purpose of this sub-section, if a person was elected or nominated to one authority and such person become a member of another authority by virtue of the membership in the first mentioned authority, the period for which he held office in the first mentioned authority alone shall be taken into account.

(2)

Nothing in sub-section (1) shall have application in respect of-

- (i)
ex-officio members referred to in section 19;
- (ii)
ex-officio members referred to in section 22, but not including members of the Syndicate who are not otherwise members of the Academic Council referred to in item (f) in sub-section (1) of section 22.

19.

Syndicate.

(1)

The Chancellor shall, as soon as may be, after the Administrator is appointed under sub-section (1) of section 55, constitute the Syndicate.

(2)

The Syndicate shall, in addition to the Vice-Chancellor, consist of the following members, namely:-

Class I - Ex-officio Members.

(a)

The Secretary to Government, in-charge of Higher Education;

(b)

The Secretary to Government, in-charge of Health and Family Welfare;

(c)

The Secretary to Government, in-charge of Law;

(d)

The Director of Collegiate Education;

(e)

The Director of Technical Education; and

(f)

The Director of Medical Education.

Class II - Other Members.

(a)

Two members elected by the Academic Council from among its members;

(b)

One member from among the Deans of Faculties nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(c)

One member having special knowledge in the field of Law, Higher Education or Medical Science nominated by Chancellor on the recommendation of the Government;

(d)

One member nominated by the Chancellor from Scheduled Castes Scheduled Tribes, Most Backward, Backward or Minority Classes on the recommendation of the Government;

(e)

One member representing Public or Private Sectors, Industries and Research Institutions having special knowledge and practical experience in industry and Commerce, nominated by the Chancellor on the recommendation of the Government;

(f)

One member elected by the Tamil Nadu Legislative Assembly from among its members;

(3)

The Vice-Chancellor shall be the ex-officio Chairperson of the Syndicate.

(4)

(a)

In case the Secretary to Government in-charge of Higher Education or the Secretary to Government in-charge of Health and Family Welfare or the Secretary to Government in-charge of Law, is unable to attend the meetings of the Syndicate for any reason, he may depute any officer of his department, not below the rank of Deputy Secretary to Government to

attend the meetings. The officer so deputed shall have the right to take part in the discussion of the meeting and shall have the right to vote.

(b)

In case the Director of Collegiate Education or Director of Technical Education or Director of Medical Education is unable to attend the meetings of the Syndicate for any reason, he may depute any officer of his department, not below the rank of Deputy Director, to attend the meetings. The officer so deputed shall have the right to take part in the discussion of the meeting and shall have the right to vote.

(5)

(a)

Save as otherwise provided, the members of the Syndicate, other than the ex-officio members, shall hold office for a period of three years and such members shall be eligible for election or nomination for another period of three years.

(b)

Where a member is elected or nominated to the Syndicate in a casual vacancy, the period of office held for not less than one year by any such member shall be construed as a full period of three years:

Provided that a member of the Syndicate who is elected or nominated in his capacity as a member of a particular electorate or body, or the holder of a particular appointment, shall cease to be a member of the Syndicate from the date on which he ceases to be a member of that electorate or body, or the holder of that appointment, as the case may be:

Provided further that where an elected or nominated member of the Syndicate is appointed temporarily to any of the offices by virtue of which he is entitled to be a member of the Syndicate ex-officio, he shall, by notice in writing signed by him and communicated to the Vice-Chancellor within seven days from the date of his taking charge of his appointment, choose whether he will continue to be a member of the Syndicate by virtue of his election or nomination or whether he will vacate office as such member and become a member ex-officio by virtue of his appointment and the choice shall be conclusive. On failure to make such a choice, he shall be deemed to have vacated his office as an elected or a nominated member.

(6)

When a person ceases to be a member of the Syndicate, he shall cease to be a member of any of the authorities of the University of which he may happen to be a member by virtue of his membership of the Syndicate.

(7)

The members of the Syndicate shall not be entitled to receive any remuneration from the University except such daily and travelling allowances as may be prescribed:

Provided that nothing contained in this sub-section shall preclude any member from drawing his normal emoluments to which is entitled by virtue of the office he holds.

(8)

A member of the Syndicate, other than ex-officio member, may tender resignation of his membership at any time before the term of his office expires. Such resignation shall be conveyed to the Chancellor by a letter in writing by the member, and the resignation shall take effect from the date of its acceptance by the Chancellor.

20.

Powers of Syndicate.

(1)

The Syndicate shall have the following powers, namely:-

(a)

to make statutes and amend or repeal the same;

(b)

to make ordinances and amend or repeal the same;

(c)

to co-operate with other Universities, other academic authorities and colleges in such manner and for such purposes as it may determine;

(d)

to provide for instruction and training in such branches of learning as it may think fit;

(e)

to provide for research and advancement and dissemination of knowledge;

- (f)
to institute Assistant Professorships, Associate Professorships, Professorships and any other teaching or research posts required by the University;
- (g)
to provide for such lectures and instructions for students, as the Academic Council may determine;
- (h)
to institute degrees, titles, diplomas and other academic distinctions;
- (i)
to confer degrees, titles, diplomas and other academic distinctions on persons who-
 - (i)
have pursued an approved course of study in the University or have been exempted therefrom in the manner prescribed and have passed the prescribed examinations of the University;
 - (ii)
have carried on research under conditions prescribed;
- (j)
to confer honorary degrees or academic distinctions on the recommendations of not less than two-thirds of the members of the Syndicate;
- (k)
to establish and maintain hostels;
- (l)
to institute fellowships, travelling fellowships, scholarships, studentships, exhibitions, medals and prizes;
- (m)
to prescribe the fees to be charged for admission to the examinations, degrees, titles and diplomas of the University and for all or any of the purposes specified in section 4;
- (n)
to consider and take such action as it may deem fit on the annual report, the annual accounts and the financial estimates;
- (o)
to institute publication bureau, students' unions, employment bureau and University athletic clubs and to maintain them;
- (p)
to enter into any agreement with the Central or any State Government or with a private management for any purposes not repugnant to the provisions of this Act;
- (q)
to make statutes regulating the method of election to the authorities of the University and the procedure at the meeting of the Syndicate, Academic Council and other authorities of the University and quorum of members required for the transaction of business by the authorities of the University other than the Academic Council;
- (r)
to hold, control and administer the properties and funds of the University;
- (s)
to direct the form, custody and use of the common seal of the University;
- (t)
to regulate and determine all matters concerning the University in accordance with this Act, the statutes, the ordinances and the regulations;
- (u)
to administer all properties and funds placed at the disposal of the University for specific purposes;
- (v)
 - (i)
to appoint the Assistant Professors, Associate Professors, Professors and the teachers of the University, fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies;
 - (ii)

to prescribe the mode of appointment of administrative and other similar posts and fix their emoluments, if any, define their duties and the conditions of their services and provide for filling up of temporary vacancies;

(w)

to suspend and take disciplinary action on the Assistant Professors, Associate Professors, Professors and the Teachers and other employees of the University;

(x)

to accept, on behalf of the University, endowments, bequests, donations, grants and transfers of any movable and immovable properties made to it;

(y)

(i)

to raise, on behalf of the University, loans from the Central or any State Government or the public or any corporation owned or controlled by the Central or any State Government; and

(ii)

to borrow money, with the approval of the Government, on the security of the property of the University for the purposes of the University;

(z)

to prescribe the qualifications of teachers of the University;

(aa)

to award fellowships, travelling fellowships, scholarships, studentships, exhibitions, medals and prizes in accordance with the statutes;

(ab)

to charge and collect such fees as may be prescribed;

(ac)

to conduct the University examinations and approve and publish the results thereof;

(ad)

to make ordinances regarding the admission of students to the University or prescribing examinations to be recognised as equivalent to University examinations;

(ae)

to appoint members to the Boards of Studies;

(af)

(i)

to appoint examiners, after consideration of the recommendation of the Boards of Studies; and

(ii)

to fix their remuneration;

(ag)

to supervise and control the residence and discipline of the students of the University departments and make arrangements for securing their health and well-being;

(ah)

to institute and manage University centres, laboratories, libraries, museums, institutes of research and other institutions established or maintained by the University;

(ai)

to manage hostels instituted by the University;

(aj)

to manage any publication bureau, students' unions, employment bureau and University athletic clubs instituted by the University;

(ak)

to review the instruction and teaching of the University;

(al)

to promote research within the University and to require reports, from time to time, of such research;

(am)

to exercise such other powers and perform such other duties as may be conferred or imposed on it by this Act or the

statutes, ordinances and regulations; and

(an)

to delegate any of its powers to the Vice-Chancellor, to a committee from among its own members or to a committee appointed in accordance with the statutes.

(2)

The Syndicate may consult the Academic Council in respect of any matter where it considers such consultation is necessary.

21.

Meetings of Syndicate.

(1)

The Syndicate shall meet at least once in every two months at such time and places and shall, subject to the provisions of sub-sections (2) and (3), observe such rules of procedure in regard to transaction of business at its meetings as may be prescribed.

(2)

One-third of the total strength of the members of the Syndicate shall be the quorum required for a meeting of the Syndicate.

(3)

The Vice-Chancellor or in his absence any member chosen by the members present, shall preside at a meeting of the Syndicate.

(4)

All questions at any meeting of the Syndicate shall be decided by a majority of the votes of the members present and voting and in the case of an equality of votes, the Vice-Chancellor or the member presiding, as the case may be, shall have and exercise a second or casting vote.

(5)

(a)

The Syndicate may, for the purpose of consultation invite any person having special knowledge or practical experience in any subject under consideration to attend any meeting. Such person may speak in, and otherwise take part in, the proceedings of such meeting but shall not be entitled to vote.

(b)

The person so invited shall be entitled to such daily and travelling allowances as are admissible to a member of the Syndicate.

22.

Academic Council.

(1)

The Academic Council shall consist of the following persons, namely:-

Class I - Ex-officio Members.

(a)

The Vice-Chancellor;

(b)

The Director of Collegiate Education;

(c)

The Director of Technical Education;

(d)

The Director of Medical Education;

(e)

The Deans of Faculties; and

(f)

The Members of the Syndicate who are not otherwise Members of the Academic Council.

Class II - Other Members.

(a)

Five members elected by the teachers of the University from among themselves, of whom two shall be Professors;

(b)

Three members from among the Deans of Faculties nominated by the Chancellor on the recommendation of the Vice-Chancellor;

(2)

The Vice-Chancellor shall be the ex-officio Chairman of, and the Registrar shall be the ex-officio Secretary to, the Academic Council.

(3)

The term of office of the members other than ex-officio members shall be three years.

(4)

The Chancellor may, after giving a reasonable opportunity of being heard, remove any member of the Academic Council other than an ex-officio member from office, if such member is, in the opinion of the Chancellor, incapable of acting as a member or has abused his position as a member, so as to render his continuance as such member detrimental to the interests of the University.

23.

Powers and duties of Academic Council.

(1)

The Academic Council shall be the principal academic body of the University and shall, subject to the provisions of this Act and the statutes, have the control and general regulation of teaching and examination in the University and be responsible for the maintenance of the standards thereon.

(2)

The powers and duties of the Academic Council shall be,-

(a)

to exercise general control on teaching and other educational programmes and maintain and promote the standards thereof;

(b)

to make regulations and amend or repeal the same;

(c)

to make regulations-

(i)

regarding the admission of students to the University and the number of students to be admitted;

(ii)

regarding the courses of study leading to degrees, diplomas and other academic distinctions;

(iii)

regarding the conduct of examinations and maintenance and promotion of standards of education;

(iv)

prescribing equivalence of examinations, degrees, titles, diplomas and certificates of other Universities, Colleges, Institutions and Boards;

(v)

for the assessment, evaluation and grading of students' performance;

(d)

to advise the Syndicate on all academic matters including the control and management of libraries;

(e)

to make recommendation to the Syndicate for the institution of Assistant Professorship, Associate Professorship, Professorship and other teaching posts including posts in research and in regard to the duties and emoluments thereof;

(f)

to formulate, modify or revise schemes for the constitution or reconstitution of departments of teaching and research;

(g)

to make recommendations to the Syndicate regarding under graduate and post-graduate teaching and research;

(h)

to make recommendations to the Syndicate for the conferment of honorary degrees or other distinctions;

(i)

to review and act upon the proposals of Boards of Studies in formulating rules, regulations, syllabi and methods of evaluation, introduction of new courses and modification of existing courses;

(j)

to make recommendations to the Syndicate regarding institution of fellowships and scholarships;

(k)

to recommend to the Syndicate measures for promoting collaboration between industries and Government employers on the one hand and the University on the other;

(l)

to delegate to the Vice-Chancellor or to any of the committees of the Academic Council, any of its powers;

(m)

to assess and make recommendations laying down standards of accommodation, equipment, apparatus, library, maintenance and other physical facilities required for each faculty; and

(n)

to exercise such other powers and perform such other duties as may be prescribed.

24.

Meetings of Academic Council.

(1)

The Academic Council shall meet at least twice in every year on dates to be fixed by the Vice-Chancellor. One of such meetings shall be called the annual meeting. The Academic Council may also meet at such other dates as it may, from time to time, determine.

(2)

One-third of the total strength of the members of the Academic Council shall be the quorum required for a meeting of the Academic Council:

Provided that such quorum shall not be required at a convocation of the University, or a meeting of the Academic Council held for the purpose of conferring degrees, titles, diplomas or other academic distinctions.

(3)

The Vice-Chancellor may, whenever he thinks fit, and shall upon a requisition in writing signed by not less than fifty per cent of the total members of the Academic Council, convene a special meeting of the Academic Council.

25.

Finance Committee.

(1)

The Finance Committee shall consist of the following members, namely:-

(a)

The Vice-Chancellor;

(b)

The Secretary to Government in-charge of Finance;

(c)

The Secretary to Government in-charge of Higher Education;

(d)

The Secretary to Government in-charge of Health and Family Welfare;

(e)

Two members nominated by the Syndicate from among its members;

(2)

If for any reasons, the Secretary to Government, in-charge of Finance or the Secretary to Government, in-charge of Higher Education or the Secretary to Government, in-charge of Health and Family Welfare is unable to attend the meetings of the Finance Committee, he may depute any officer of his department not below the rank of Deputy Secretary to Government. The officer so deputed shall have the right to take part in the discussion of the meeting and shall have the right to vote.

(3)

The Vice-Chancellor shall be the ex-officio Chairman and the Finance Officer shall be the ex-officio Secretary to the Finance Committee.

(4)

All the members of the Finance Committee, other than ex-officio members shall hold office for a period of three years.

(5)

The Finance Committee shall meet at least twice in every year to examine the accounts and to scrutinize proposals for expenditure.

(6)

The annual accounts and the financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments and thereafter submitted to the Syndicate for approval.

(7)

The Finance Committee shall recommend limits for the total recurring expenditure and the total non-recurring expenditure for the year based on the income and resources of the University which, in the case of productive works, may include the proceeds of loans.

(8)

The Finance Committee shall-

(a)

review the financial position of the University, from time to time;

(b)

make recommendation to the Syndicate on every proposal involving investment or expenditure for which no provision has been made in the annual financial estimates or which involves expenditure in excess of the amount provided for in the annual financial estimates;

(c)

prescribe the methods and procedure and forms for maintaining the accounts of the University;

(d)

make recommendation to the Syndicate on all matters relating to the finances of the University; and

(e)

perform such other functions as may be prescribed.

(9)

The financial estimates of the University prepared by the Finance Officer shall be laid before the Finance Committee for consideration and comments. The said estimates, as modified by the Finance Committee, shall then be laid before the Syndicate for consideration. The Syndicate may accept the modifications made by the Finance Committee.

26.

Faculties and Boards of Studies.

(1)

The University shall include such Faculties of Arts, Science and such other Faculties, as may be prescribed by the statutes.

(2)

Each Faculty shall have a Dean who shall be appointed in such manner as may be prescribed.

(3)

Each Faculty shall comprise of such departments of teaching with such assignment of subjects of study as may be prescribed.

(4)

There shall be a Board of Studies for each Faculty, the constitution and functions of which shall be such as may be prescribed.

(5)

The constitution and functions of the Faculties shall, in all other respects, be such as may be prescribed.

27.

Constitution of other authorities.

- The constitution and powers of such other bodies, as may be declared by the statutes to be authorities of the University, shall be such as may be prescribed.

28.

Constitution of committees and delegation of powers.

- All the authorities of the University shall have power to constitute or reconstitute committees and to delegate to them such of their powers as they deem fit; such committees shall, save as otherwise provided, consist of members of the authority concerned and of such other persons, if any, as the authority in each case, may deem fit.

Chapter V

Statutes, Ordinances and Regulations

29.

Statutes.

- Subject to the provisions of this Act, the statutes may provide for all or any of the following matters, namely:-

- (a)
the holding of convocation to confer degrees;
- (b)
the conferment of honorary degrees and academic distinctions;
- (c)
the constitution, powers and functions of the authorities of the University;
- (d)
the manner of filling vacancies among members of the authorities;
- (e)
the allowances to be paid to the members of the authorities and committees thereof;
- (f)
the procedure at meetings of authorities including the quorum for the transaction of business at such meetings;
- (g)
the authentication of the orders or decisions of the authorities;
- (h)
the formation of departments of teaching at the University;
- (i)
the term of office and method of appointment and conditions of service of the officers of the University other than the Chancellor and the Pro-Chancellor;
- (j)
the qualifications of the teachers and other persons employed in the University;
- (k)
the classifications, the method of appointment and determination of the terms and conditions of service of teachers and other persons employed in the University;
- (l)
the institution of pension, gratuity, insurance or provident fund for the benefit of the officers, teachers and other persons employed by the University;
- (m)
the institution of fellowships, scholarships, studentships, bursaries, exhibitions, medals and prizes and the conditions of award thereof;
- (n)
the establishment and maintenance of halls, hostel and laboratories;
- (o)
the conditions for residence of students of the University in the halls and hostels and the levy of fees and other charges for such residence;
- (p)
any other matter which is required to be or may be prescribed by the statutes.

30.

Statutes, how made.

(1)

The Syndicate may from time to time, make statutes and amend or repeal the statutes in the manner hereinafter provided in this section.

(2)

The Academic Council may propose to the Syndicate the draft of any statute or of any amendment to, or of repeal of, a statute, to be passed by the Syndicate and such draft shall be considered by the Syndicate at its next meeting:

Provided that the Academic Council shall not propose the draft of any statute or of any amendment to a statute relating to matters other than academic affairs.

(3)

The Syndicate may consider the draft proposed by the Academic Council under sub-section (2) and may either pass the draft statute or reject or return it with or without amendments to the Academic Council for reconsideration.

(4)

(a)

Any member of the Syndicate may propose to the Syndicate the draft of a statute or of any amendments to, or of repeal of, a statute and the Syndicate may either accept or reject the draft, if it relates to matter not falling within the purview of the Academic Council.

(b)

In case such draft relates to a matter within the purview of the Academic Council, the Syndicate shall refer it for consideration to the Academic Council, which may, either report to the Syndicate that it does not approve the draft or submit the draft to the Syndicate in such form as the Academic Council may approve and the Syndicate may either pass with or without amendments or reject the draft.

(5)

A statute or an amendment to or repeal of, a statute passed by the Syndicate shall be submitted to the Chancellor who may assent thereto or withhold his assent. A statute or an amendment to or repeal of, a statute passed by the Syndicate shall have no validity until it has been assented to by the Chancellor.

31.

Ordinances.

- Subject to the provisions of this Act and the statutes, the ordinances may provide for all or any of the following matters, namely:-

(a)

the admission of the students to the University;

(b)

the courses of study leading to all degrees, titles, diplomas and other academic distinctions of the University;

(c)

the conditions of residence of students and the levy of fees for residence in hostels;

(d)

the conditions under which the students shall be admitted to the courses of study leading to degrees, titles, diplomas and other academic distinctions of the University;

(e)

the conduct of examinations of the University and the conditions on which students shall be admitted to such examinations;

(f)

the manner in which exemption relating to the admission of students to examinations may be given;

(g)

the conditions and mode of appointment and duties of examining bodies and examiners;

(h)

the maintenance of discipline among the students of the University;

(i)

the fees to be charged for courses of study, research, experiment and practical training and for admissions to the examinations for degrees, titles, diplomas and other academic distinction of the University;

(j)

the qualifications and emoluments of teachers; and

(k)

any other matter which by this Act or the statutes is required to be or may be prescribed by the ordinances.

32.

Ordinances, how made.

(1)

In making ordinances, the Syndicate shall consult-

(a)

the Boards of Studies when such ordinances affect the appointment and duties of examiners; and

(b)

the Academic Council when they affect the conduct or standard of examinations, or the conditions of residence of students.

(2)

All ordinances made by the Syndicate shall have effect from such date as it may direct, but every ordinance so made shall be submitted as soon as may be to the Chancellor and the Academic Council and shall be considered by the Academic Council at its next succeeding meeting.

(3)

The Chancellor may direct that the operation of any ordinance shall be suspended until such time as the Academic Council has had an opportunity of considering the same.

33.

Regulations, how made.

(1)

The Academic Council may make regulations consistent with this Act, the statutes and the ordinances to carry out the duties assigned to it thereunder.

(2)

All such regulations shall have effect from such date as the Academic Council may direct but every regulation so made shall be submitted as soon as may be to the Syndicate for its consideration at its next meeting.

Chapter VI

Admission of Students

34.

Admission to University courses.

(1)

No person shall be admitted to a course of study in the University for admission to the examinations for degrees, titles or diplomas of the University unless he-

(a)

has passed the examination prescribed therefor; and

(b)

fulfills such other academic conditions as may be prescribed by the University.

(2)

Every candidate for a University examination shall, unless exempted from the provisions of this sub-section by a special order of the Syndicate made on the recommendation of the Academic Council, be enrolled as a member of a University. Any such exemption may be made subject to such conditions as the Syndicate may think fit.

35.

Selection and admission of students.

(1)

The Government may specify by general or special order, the policy, guidelines, method and procedure for selection of candidates for admission to a course of study or training in the University.

(2)

Admission to professional degree courses such as engineering, medicine, dental, agriculture and other allied courses in the University shall be made following the provisions of the Tamil Nadu Admission in Professional Educational Institutions Act, 2006.

36.

Admission to University examinations.

- No candidate shall be admitted to any University examination unless he is enrolled as a member of a University, and has satisfied the requirements as to the attendance required under the regulations for the same or unless he is

exempted from such requirements of enrollment or attendance or both by an order of the Syndicate passed on the recommendation of the Academic Council made under the regulations prescribed. Exemptions granted under this section shall be subject to such conditions as the Syndicate may think fit.

Chapter VII

Funds and Accounts

37.

Permanent Endowment Fund.

(1)

The University shall have a fund called the Permanent Endowment Fund which it shall invest and keep invested in securities issued or guaranteed by the Central Government or by any State Government.

(2)

The said Permanent Endowment Fund shall consist of-

(a)

the sum of twenty lakhs of rupees given by the Hon'ble Rajah Sir S.R.M. Annamalai Chettiar;

(b)

the sum of twenty-seven lakhs of rupees given to it by the Government; and

(c)

any contributions to this Fund made by the Government, the Central Government, any local or other public body or others.

38.

General Fund.

- The University shall have a General Fund to which shall be credited,-

(a)

its income from fees, grants, donations and gifts, if any;

(b)

any contribution or grant made by the Central Government, any State Government, the University Grants Commission or like authority, any local authority or any corporation owned or controlled by the Government; and

(c)

endowments and other receipts.

39.

Other funds.

- The University may have such other funds as may be prescribed by the statutes.

40.

Management of funds.

- The funds and all moneys Of the University shall be managed in such manner as may be prescribed.

41.

Annual report.

- The annual report of the University shall be prepared by the Syndicate and shall be submitted to the Academic Council on or before such date as may be prescribed and shall be considered by the Academic Council at its next annual meeting. The Academic Council may pass resolutions thereon and communicate the same to the Syndicate which shall take action in accordance therewith. The Syndicate shall inform the Academic Council of the action taken by it. A copy of the report with a copy of the resolution thereon, if any, of the Academic Council shall be submitted to the Government.

42.

Annual accounts.

(1)

The annual accounts shall be submitted to such examination and audit, as the Government may direct and a copy of the annual accounts and audit report shall be submitted to the Government.

(2)

The University shall settle objections raised in the audit and carry out such instructions as may be issued by the Government on the audit report.

(3)

The Government shall cause the annual accounts and the audit report to be laid before the Legislative Assembly together with their comments.

Chapter VIII

Conditions of Service

43.

Pension, Gratuity, etc.

(1)

The University shall institute for the benefit of its officers, teachers and other persons employed in the University such pension, gratuity, insurance and provident funds as it may deem fit, in such manner and subject to such conditions, as may be prescribed.

(2)

Where the University has so instituted a provident fund under sub-section (1), the Government may declare that the provisions of the Provident Funds Act, 1925 shall apply to such fund as if the University were a local authority and the fund a Government Provident Fund.

(3)

The University may, in consultation with the Finance Committee, invest the provident fund amount in such manner, as it may determine.

44.

Conditions of service.

- Subject to the provisions of this Act, the appointment, procedure for selection, pay and allowances and other conditions of service of officers, teachers and other persons employed in the University shall be such as may be prescribed.

Explanation. - For the purposes of this section, the word "officer" shall not include the Chancellor and the Pro-Chancellor.

45.

Selection Committee.

(1)

There shall be a Selection Committee for making recommendations to the Syndicate for appointment to the posts of Assistant Professor, Associate Professor, Professor, Librarian and other posts of teachers of the University.

(2)

The Selection Committee for appointment to the posts specified in sub-section (1) shall consist of the Vice-Chancellor, a nominee of the Government and such other persons as may be prescribed:

Provided that the selection for such appointment by the Selection Committee shall be made in accordance with the guidelines that may be issued by the University Grants Commission or other agencies concerned in relation to such appointment.

(3)

The Vice-Chancellor shall preside at the meetings of a Selection Committee.

(4)

The meetings of a Selection Committee shall be convened by the Vice-Chancellor.

(5)

The procedure to be followed by a Selection Committee in making recommendations shall be laid down in the ordinances.

(6)

If the Syndicate is unable to accept the recommendations made by a Selection Committee, it shall record its reasons and submit the case to the Chancellor for final orders.

(7)

Appointments to temporary posts or vacancies shall be made in the manner indicated below:-

(a)

If the temporary vacancy is for a duration longer than one academic session, it shall be filled on the advice of the Selection Committee in accordance with the procedure indicated in the foregoing provisions:

Provided that if the Vice-Chancellor is satisfied that in the interest of work it is necessary to fill the vacancy, the appointment may be made on a temporary basis by a local Selection Committee referred to in clause (b) for a period not

exceeding six months.

(b)

If the temporary vacancy is for a period less than a year, appointment to such vacancy shall be made on the recommendation of a local Selection Committee consisting of the Dean of the Faculty concerned, the Head of the Department and a nominee of the Vice-Chancellor:

Provided that if the same person holds the offices of the Dean and Head of the Department, the Selection Committee may consist of two nominees of the Vice-Chancellor:

Provided further that in case of sudden casual vacancies in teaching posts caused by death or any other reason, the Dean may, in consultation with the Head of Department concerned, make a temporary appointment for a month and report to the Vice-Chancellor and the Registrar about such appointment.

(c)

No teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under this Act, be continued in service on such temporary employment unless he is subsequently selected by a local Selection Committee or a regular Selection Committee, for a temporary or a permanent appointment, as the case may be.

46.

Terms and conditions of Service of Heads of Department.

(1)

Each Department of the University shall have a Head who shall be a Professor or Director and whose duties and functions and terms and conditions of appointment shall be such as may be prescribed by the ordinances:

Provided that if there is more than one Professor in any Department, the Head of the Department shall be appointed in the manner prescribed by the ordinances:

Provided further that in a Department where there is no Professor, an Associate Professor or an Assistant Professor may be appointed as Head of the Department in the manner prescribed by the ordinances.

(2)

It shall be open to a Professor or an Associate Professor or an Assistant Professor to decline the offer of appointment as Head of the Department.

(3)

A person appointed as Head of the Department shall hold office as such for a period of three years and shall be eligible for reappointment.

(4)

A Head of the Department may resign his office at any time during his tenure of office.

(5)

A Head of the Department shall perform such functions as may be prescribed by the ordinances.

Chapter IX

Miscellaneous

47.

Filling up of casual vacancies.

- All casual vacancies among the members other than ex-officio members of any authority or other body of the University shall be filled as soon as conveniently may be, by the person or body who or which, nominated or elected the member whose place has become vacant and the person nominated or elected to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person whose place he fills would have been a member:

Provided that vacancies arising by efflux of time among elected members of any authority or other body of the University may be filled at elections which may be fixed by the Vice-Chancellor to take place on such days not earlier than two months from the date on which the vacancies arise, as he thinks fit:

Provided that no casual vacancy shall be filled, if such vacancy occurs within six months before the date of the expiry of the term of the member of any authority or other body of the University.

48.

Proceedings of University authorities and bodies not to be invalidated by vacancies.

- No act or proceeding of any authority or other body of the University shall be invalidated merely by reason of the

existence of a vacancy or of any defect or irregularity in the election or nomination of a member of any authority or other body of the University or of any defect or irregularity in such act or proceeding not affecting the merits of the case or on the ground that the authority or other body of the University, did not meet at such intervals as required under this Act.

49.

Removal from membership of University.

(1)

The Syndicate may, remove by an order in writing made in this behalf, any person from membership of any authority of the University by a resolution passed by a majority of the total membership of the Syndicate and by a majority of not less than two-thirds of the members of the Syndicate present and voting at the meeting, if such person has been convicted by a Criminal Court for an offence which in the opinion of the Syndicate involves moral turpitude or if he has been guilty of gross misconduct and for the same reason, the Syndicate may withdraw any degree or diploma conferred on or granted to that person by the University.

(2)

The Syndicate may also by an order in writing made in this behalf remove any person from the membership of any authority of the University if he becomes of unsound mind or has applied to be adjudicated or has been adjudicated as an insolvent.

(3)

No action under this section shall be taken against any person unless he has been given a reasonable opportunity to show cause against the action proposed to be taken.

(4)

A copy of every order passed under sub- section (1) or sub-section (2), as the case may be, shall as soon as may be after it is so passed, be communicated to the person concerned in the manner prescribed by regulations.

50.

Dispute as to Constitution of University authorities and bodies.

- If any question arises whether any person has been duly elected or nominated as, or is entitled to be, a member of any authority of the University or other body of the University, the question shall be referred to the Chancellor whose decision thereon shall be final.

51.

Power to obtain information.

- Notwithstanding anything contained in this Act or in any other law for the time being in force, the Government may, by order in writing, call for any information from the University on any matter relating to the affairs of the University and the University shall, if such information is available with it, furnish to the Government with such information within a reasonable period:

Provided that in the case of information which the University considers confidential, the University may place the same before the Chancellor and the Pro-Chancellor.

52.

Special mode of appointment.

(1)

The Syndicate may invite a person of high academic distinction and professional attainments to accept a post of Professor in the University on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

(2)

Syndicate may appoint a teacher or any other academic staff working in any other University or Organisation for undertaking a joint project in accordance with the manner laid down in the ordinances.

53.

Power to give direction.

(1)

If any difficulty arises as to the first constitution or reconstitution of any authority of the University in giving effect to the provisions of this Act, the Government may, by notification, make such provision, not inconsistent with the provisions of this Act, as may appear to them to be necessary or expedient for removing the difficulty:

Provided that no such notification shall be issued after the expiry of two years from the date of commencement of this

Act.

(2)

Every notification issued under sub-section (1) or under any other provisions of this Act shall, as soon as possible after it is issued, be placed on the table of the Legislative Assembly, and if, before the expiry of the session in which it is so placed or the next session, the Assembly makes any modification in any such notification or the Assembly decides that the notification should not be issued, the notification shall thereafter have effect only in such modified form or be of no effect, as the case maybe, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that notification.

54.

Power to give directions.

- The Government may, from time to time, issue such directions to the University, as it may deem fit, for giving effect to the provisions of this Act and it shall be the duty of the University, to comply with such directions.

Chapter X

Transitory Provisions

55.

Appointment of Administrator by Government.

(1)

Immediately after the commencement of this Act, the Government shall appoint an administrator to exercise the powers and discharge the functions of the Vice-Chancellor under this Act till a Vice-Chancellor is appointed in accordance with the provisions of section 9:

Provided that the person so appointed shall be a Professor of the University or any other University or college or an officer of the Government not below the rank of Secretary to Government.

(2)

The person appointed as administrator under sub-section (1) shall hold office for a period of one year or till the necessity ceases, whichever is earlier.

56.

Appointment of Registrar by Government.

(1)

Immediately after the commencement of this Act, the Government shall appoint any person to exercise the powers and discharge the functions of the Registrar under this Act till a Registrar is appointed in accordance with the provisions of section 11:

Provided that the person so appointed shall be a professor of the University or any other University or college or officer of the Government not below the rank of Deputy Secretary to Government.

(2)

The person appointed as Registrar under sub- section (1) shall hold office for a period of one year or till the necessity ceases, whichever is earlier.

57.

Removal of doubts.

(1)

For removal of doubts, it is hereby declared that-

(a)

the Vice-Chancellor of the Annamalai University, appointed under the Annamalai University Act, 1928 (hereinafter in this section referred to as the 1928 Act) and holding office as such immediately before the commencement of this Act shall cease to be the Vice-Chancellor of the University;

(b)

the Registrar of the Annamalai University, holding office as such immediately before the commencement of this Act shall cease to be the Registrar of the University;

(c)

members of the authorities of the Annamalai University, elected or nominated or otherwise as such members under the 1928 Act and holding office as such members in any of the authorities of the Annamalai University, immediately before the commencement of this Act shall cease to be such members.

(2)

Within three months from the date of commencement of this Act or such further period not exceeding six months as the Government may, by notification specify, the Administrator appointed under sub-section (1) of section 55 shall make arrangements for re-constituting the Syndicate, the Academic Council and other authorities of the University in accordance with the provisions of this Act;

(3)

The Syndicate, Academic Council and other authorities of the University re-constituted under sub-section (2) shall commence to exercise their functions on such date as the Government may, by notification, specify in this behalf.

(4)

Until such time the Syndicate, Academic Council and other authorities of the University are duly constituted under sub-section (2), the Administrator appointed under sub-section (1) of section 55 may constitute any committee comprising of officers, temporarily to exercise and perform any of the powers and duties of such authorities.

(5)

It shall be the duty of the Administrator to draft such statutes, ordinances and regulations as may be necessary and submit them to the respective authorities for their disposal. Such statutes, ordinances and regulations when framed shall be published in the Tamil Nadu Government Gazette.

58.

Repeal and savings.

(1)

The Annamalai University Act, 1928 (hereinafter in this section referred to as the 1928 Act) is hereby repealed.

(2)

Upon such repeal, the provisions of sections 8 and 18 of the Tamil Nadu General Clauses Act, 1891 shall apply.

(3)

Notwithstanding such repeal-

(a)

all colleges established and maintained by the Annamalai University under the 1928 Act shall be deemed to have been established and maintained by the University which is deemed to have been established under this Act;

(b)

all property, whether movable or immovable, including lands, buildings, equipments, books and library and all rights of whatsoever kind owned by or vested in, or held in trust immediately before the date of commencement of this Act by the Annamalai University as well as liabilities legally subsisting shall stand transferred to, and vest in, the University which is deemed to have been established under this Act;

(c)

all benefactions accepted or received immediately before the date of commencement of this Act by the Annamalai University shall be deemed to have been accepted or received by the University which is deemed to have been established under this Act, and all the conditions on which such benefactions were accepted or received shall be deemed to be valid under this Act, notwithstanding that such conditions are inconsistent with the provisions of this Act;

(d)

all references to the Annamalai University in any Act or any rule, notification, proceeding, order, regulation, by-law made thereunder shall be construed as reference to the University which is deemed to have been established under this Act;

(e)

all appointment of the officers (other than the Vice-Chancellor and the Registrar), teachers and employees of the said University and subsisting immediately before the date of commencement of this Act shall be deemed to have been made under, and for the purposes of, this Act, and such officers, teachers and employees shall continue to hold office, in the University which is deemed to have been established under this Act, subject to the conditions governing the terms of their office of employment; and

(f)

all statutes and regulations made under the 1928 Act shall, so far as they are not inconsistent with the provisions of this Act, continue to be in force and be deemed to have been made under the corresponding provisions of this Act until they are superseded or modified by statutes, ordinances and regulations made under this Act.

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